
Journal

1987 PSC 460

Court

AZAD JAMMU AND KASHMIR

Date

1987-02-23

Appeal No.

CRIMINAL APPEAL NO. 20 OF 1986,

Judge

\ RAJA MUHAMMAD KHURSHID KHAN C.J. AND SARDAR SAID MUHAMMAD KHAN

Parties

ABRAR HUSSAIN SHAH AND OTHER VERSUS THE STATE

Lawyers

FOR THE APPELLANTS : CH. MUHAMMAD TAJ, ADOCAT.FOR THE STATE : MIRZA MUHAMMAD NISAR, ADDITIONAL ADVOCATE GENERAL.FOR RESPONDENT NO. 2 : CH. ALI MUHAMMAD, ADVOCATE FOR THE COMPLALNNANT: BASHARAT AHMAD SHAIKH, ADVOCATE.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 242 AJK ISLAMIC PENAL LAWS ENFORCEMENT ACT (OF 1974) - SS. 2(7) AND 5 WORDS AND PHRASES-TRIED* AND TRIAL CRIMINAL PROCEDURE CODE (V OF 1898) - SS, 537, 530 (P) 242 AJ AND K ISLAMIC PENAL LAWS ENFORCEMENT ACT (OF 1974) - S. 2(7) CRIMINAL TRIAL CRIMINAL PROCEDURE CODE (V OF 1898) - SS, 42 AND 537 ESTOPPEL

Judgment

Raja Muhammad Kburshid Khan, C.J.—The facts detailed below have given rise to this appeal which has been moved by Abrar Hussain Shah and Matleob Hussain Shah, appellants herein, to impugn the judgment passed by the learned Chief Justice of the Shariat Court on 23-7-1986.

2. Three accused, namely, Abrar Hussain Shah, Matloob Hussain Sbah, appellants, and Ghulam Mustafa were sent to fact trial on TO-9-1981 in the District Criminal Court, Mirpur for having committed an offence of murder under section 5 of the Islamic Penal Laws Enforcement Act, 1974, in doing away with the life of one Zumurd Hus-ain *hah. The reading of the interim orders shows that the challan, required to be presented in the District Criminal Court, was entertained by the Sessions Judge alone and not the District Criminal Court. The accused/appellants were examined 27th October, 1981, by the Sessions Judge alone under section 242 Cr. P. C. In their statements they disowned the prosecution case and the sessions Judge then asked the prosecution to examine its witnesses in support of the charge. The prosecution evidence, the statements of the accused under section 342 Cr. P. C. and the statements of the defence witnesses, however, were recorded by the District Criminal Court.

3. After hearing the arguments, the members of the District Criminal Court discovered that the accused, to the exclusion of the District Qazi, were examined by the Sessions Judge alone under section 242 Cr. P. C. and not by the District Criminal Court as the law required. To have opinion for this infirmity, they referred the matter to the shariat Court.

4. The learned Chief Justice of the Shariat Court, vide order dated '3-7-1986, while disposing of the reference opined that the lacuna being of technical nature was curable under section 537 Cr. P. C. and it did not affect the trial at all. In the estimation of the learned Chief Justice, a departure in the case even from the mandatory provisions of the procedure provided under section 242 Cr. P. C., has caused no prejudice or injustice to the appellants and therefore, such an omission is merely an irregularity;

curable under section 3 u. P. C. Reliance was placed on the case law reported as Gopal Krishna Saha and others v. Matt Lai Singh AIR 1927 Cal. 196, V. M. Abdul Rahman v. King Emperor AIR 1927 P.C. 44. Atia Muhammad v. Emperor AIR W30 P.C. 27 Ait.

Lahuni v. Khushal AIR 9 >2 Nig. 27 Dost Muhammad Qutab Din v. Municipal Committee, Haripur Hazara AIR 1941 Pesh. 9, Express Dairy Ltd v. Corporation of Calcutta AIR 1050 Cal. 6<. Maaan Stgn ana another v. The State AIR Prpsu 125, M. Ramamurthy v.

State of Mysore AIR 1954 Mysore 164, Moseb Kan a Chowdhry and another v. State of Bengal AIR 1956 S.C. 536, Gut-ba han singh v. State AIR 1957 S. C. 62, Abdul Wahab v. The Crown PLD 1955 FC 88, Shamim v. The State and another PLD 1966 S.C. 178 and Iqbal Hussain v. The State PLD 1969 Lah. 217.

5. In most of the cases, relied upon by the learned Chief Justice, more or less identical law to the effect that irregularity or lacuna in a statement under section 242 Cr. P. C. is curable under section 537 Cr. P. C. if such an infirmity does not cause any prejudice to the accused, is enunciated. We would take up the relevant cases in the latter part of the order to show that these are either distinguishable or do not enunciate the correct law. In two cases, namely, V. M. Abdul Rahman v. King Emperor AIR 1927 P.C. 44 and Dost Muhammad Qutab Din v. Municipal Committee Haripur Hazara AIR 1941 Pesh. 9, it has been laid down that omission to comply with the mandatory provisions of the Code of Criminal Procedure, if no prejudice is done to the accused, would not vitiate the trial. As against these cases is Gopal Krishna Saha and another v. Matt Lai Singh AIR

1927 Cal. 196 and Express Dairy Ltd. v. Corporation of Calcutta AIR 1950 Cal. 61 opposite view is taken. In these cases it has been observed that omission to follow the mandatory provisions of section 242 Cr. P. C. vitiates the trial irrespective of any prejudice to the accused with which he is charged when he appears or is brought before the Court is an omission to comply with the mandatory provisions of U.Cr.P. as to the mode of trial and, such irregularity and cannot be cured by section 537 Cr.P.C.

like the facts in the former two cases, namely, V. M. Abdul Kahman v.

Kings Emperor AIR 1972 P C, 44 and Dost Muhammad Qutab Din v. Afzal Beg Emperor AIR 1972 P C, 44 and Dost Muhammad Qutab Din v. Afzal Beg AIR 1972 P C, 44. In the latter cases, namely, Gopal Krishna SM and others v.

Muzil W AIR 1927 Cal 196 and Express Dairy Ltd, v. Corporation of Calcutta AIR 1950 Cal. 61. The detailed reasons shall be given in the later part of the report.

6 Ch. Muhammad Taj, the learned counsel for the appellants, offered the following criticism to assail the impugned judgment.

1. That since the statements of the appellants under section 242 Cr P C have not been recorded by the Court of competent jurisdiction in the whole trial, without showing prejudice to the appellants stands vitiated and the learned Chief Justice erroneously held that the illegality cannot be cured under section 537 Cr P C. He claimed that the trial from the stage the illegality had occurred.

In his estimation the entire trial based on illegal statement under section 242 Cr P C, irrespective of prejudice, would crumble; (ii) He further added that he has no quarrel with the finding of the learned Chief Justice that mere nonobservance in strict conformity with the formalities enshrined under section 242 barring few exceptions, may not vitiate the trial unless such omission does not cause prejudice to the accused but in his view the point involved in this case is altogether different. The point involved which requires determination, according to the learned counsel, is as to whether the statements under section 242 Cr P C recorded by an incompetent authority (court) would still be required to be supported by prejudice to hold their statements as void, as held by the learned Chief Justice, or this fact per se would render all the proceedings nugatory. This circumstance having strong bearing upon the controversial point, he submitted, was omitted to be taken due note of in its true colours by the Sessions Court which gave rise to an incorrect interpretation of law; (iii) His case precisely is that the trial of the appellants/accused started by the Sessions Judge alone in recording their statements under section 242 Cr.P.C., cuts at the root of the jurisdiction and makes the whole trial void; but the learned Chief failed to address himself to resolve this important point. The question of prejudice or no prejudice, thus, in the estimation of the learned counsel, has no relevancy or importance for the resolution of the point involved in the present case; (iv) Elaborating the point, the learned counsel submitted that he would not contest the proposition that if a statement recorded by a Court of competent jurisdiction, under section 242 Cr.P.C., makes some omission, error or irregularity, this would not ordinarily vitiate the trial if no prejudice appears to have been done by such an omission etc. to an accused and such omission, error or irregularity may be rectified under the curative provisions of section 537 Cr.P.C. But if the basic step of trial (statements under section 242 Cr.P.C.) is taken by a person not competent to take, it would be an act without jurisdiction and would certainly be termed as an illegality which cannot be cured under any provisions of Code of Criminal Procedure. The learned counsel, however, conceded that the substance of the offence, with which the appellants were charged, was put to them and they were asked to show-cause as to why they might not be convicted for the alleged offence and, therefore, there is no room for the argument that the particulars of the offence were not put to the appellants.

7. As against this it has been contended by Mr. Baiharat Ahmad Sheikh, the learned counsel for the opposite party (i) that the statements of the appellants under section 242 Cr. C. recorded by the Sessions Judge alone is merely an irregularity which has rightly been taken by the Shariat Court as an irregularity curable under section 537 Cr.P.C. He placed reliance on all the case law which has been relied upon by the learned Chief Justice in the impugned report; (if) that even if it is found that the Sessions Judge alone was incapable to record the statements of the appellants under section 241 Cr.P.C., at the most it would be said that it is a case without statements under section 242 Cr.P.C which is curable and would not affect the trial as it had not caused any prejudice to the appellants. The learned counsel, however, conceded that the District Qazi was absent on the day the statements of the appellants were taken under section 242 Cr. P, C. and in absence of the District Qazi, Sessions Judge alone was incompetent to record the statements of the appellants under section 242 Cr.P.C.

(ii) that since the appellants failed to challenge the omission throughout the trial, they are estopped to challenge the same.

8. Now we proceed to determine the issue in the light of the arguments advanced at the bar. In the first instance let us know as to what do we mean by District Criminal Court? The District Court of Criminal Jurisdiction has been defined under section 2(7) of the Islamic Penal Laws Enforcement Act, 1974, and, according to the aforesaid provision, the 'District Criminal Court' means the Sessions Judge and the District Qazi. In view of the definition of the District Criminal Court, we can safely hold that the learned Sessions Judge alone had no competence and jurisdiction whatsoever to record the statements of the appellants under section 242 Cr P C. In this view of the matter, proceedings taken by the learned Sessions Judge in recording the statements of the appellants under section 242 Cr.P.C , on 27-10-1981, were derogatory to the relevant law. How would this affect the trial is the basic question which would receive our attention in the later part of the judgment at its proper place? 9. The offence of murder in the instant case is punishable under section 5 of the Islamic Penal Laws Enforcement Act, 197, and is undoubtedly triable by the District Criminal Court; consisting of Sessions Judge and the District Qazi and none else in the manner allowed in the summons cases. We may state here that this case is of first instance in Indo-Pak Subcontinent as there do not exist two members Courts at district level in any of the countries.

Naturally, no law directly deciding the issue involved in this case is available and only inferences can be drawn by analogy.

10 To avoid any mistake, we deem it desirable to state again that the record shows that on 27-10-1981, when the statements of the appellants under section 242 Cr.P.C. were recorded, the District Qazi was not present and the statements in the absence of Qazi were incompetently recorded by the Sessions Judge alone. The Sessions Judge at that time failed to take note of the fact that the offence was triable by the District Criminal Court consisting of the Sessions Judge and the District Qazi ; and he alone was not competent to record the statements.

11. The controversy requires resolution in this background. But as contended by Mr. Muhammad Taj. it appears that the learned Chief Justice of the Shariat Court probably was not made fully alive to the real point during the course of arguments and he, thus, while deciding the matter seems to have been misled by a mistaken belief that on the date on which the statements of the appellants under section 242 Cr P C.were recorded, the District Qazi was also present but inadvertently he failed to sign the statements ; and the omission, thus, is curable under section 54/ Cr P.C. as it did not cause any prejudice to the appellants. Some observations made in the body of the judgment persuaded us to hold so, the relevant observations are "On conclusion of

trial, it was discovered by the members of the District Criminal Court that the certificate endorsed on the statement of accused persons under section 242, Cr. PC was not signed by one of the members (District Qazi). "The omission discovered at the time of judgment is that the certificate of the Court that the substance of material particulars was put to the accused, was not explained and read over to him, was not signed by the District Qazi." But when the record is examined minutely, the position appears to be altogether different. The District Qazi, on the day the Sessions Judge recorded the statements of the appellants under section 242 Cr. PC was absent and naturally there was no valid Court to record the statements of the appellants under section 242 Cr. PC. How this would affect the trial is the next important question to be resolved? 12. For the resolution of the above points, in the first instance, one is to know as to what is meant by 'trial' and whether the statements of accused recorded under section 242 Cr. PC would constitute trial. If the answer to the above query is in affirmative, how the failure of the District Criminal Court to record the statements of the appellants would affect the trial would be the further question to be resolved? 13. 'Trial' has nowhere been defined in the Code of Criminal Procedure. Therefore, to know its meaning we can seek guidance from its definition found elsewhere. The 'trial' in the Manual of Law Terms and Phrases by J.L.J. Ayer has been described as 'the examination of a > cast, civil or criminal, by a competent tribunal'. Similarly, in Wharton's Law Lexicon 'trial' has been explained as 'the hearing of a case, civil or criminal before a Judge who had jurisdiction over it according to the law of the land'. It would thus appear that the words 'tried' and 'trial' cannot be given an exact meaning. Their meaning may vary from case to case according to the mode of procedure to be adopted in such cases. The Supreme Court of India in The State of Behar v. Ram Naresh Fandey and another, AIR 1957 SC 3*9 observed as follows "The words 'tried' and 'trial' appear to have no fixed or universal meaning. No doubt, in quite a number of sections in the Code the words 'tried' and 'trial' have been used in the sense of reference to a stage after the inquiry. That meaning attaches to the words in those sections having regard to the context in which they are used." 14. The definition of 'trial' in Manual of Law, Terms and Phrases and Wharton's Law Lexicon, referred to above, to us, best provides the meaning of the word 'trial'. It shows that the 'trial' means practically the whole proceedings by a competent Tribunal. It further shows that the trial in civil or criminal matters and as a matter of fact in any case of judicial complexion be by a competent Tribunal or a Judge who has jurisdiction over it. Therefore, if a person who had no jurisdiction over a matter but illegally takes it up (as is done here), his action, for the reasons to be found in the later part of the order, being shorn of authority would be construed as a bad one and can never be termed as a valid act.

15. In warrant cases the case law is not unanimous as to when the 'trial' starts. The view adopted by Madras High Court, in majority cases, is that in warrant cases the trial starts from framing of the charge. However, different view from the one taken in Madras cases has been taken by the Lahore High Court in Sahib Din and others v. Emperor AIR 1922 Lab. 49. In this case it was observed that for the purposes of section 350 of the Code, a trial cannot be said to commence only when a charge is framed; the trial rather covers the whole proceedings in a warrant case. This view was followed in a trial of an accused person for the purposes of section 350 does not commence at the charge, but commences as stated in 16. It would, thus, appear that the Lahore and Sind High Courts differed with the learned Judges of the Madras High Court with regard to the stage from which the trial could be said to have started in warrant cases.

17. In our best judgment, with profound respect which we have for the learned Judges of the Madras High Court, the law propounded by Lahore and Sind High Courts seems to be reasonable and quite in accordance with the scheme of the Code of Criminal Procedure and we feel advised to prefer the same.

II. The law laid down by Lahore and Sind High Courts, by analogy, would also apply and cover the summons trial cases.

Therefore, in summons cases, trial would commence from the very start or at least when an accused person is examined under section 242 Cr. PC in presence of his counsel, if any, and Public Prosecutor. The Full Bench of the High Court followed the view in 25 Cal. 863 and observed that the trial has always been understood to mean the proceedings which commence when the case is called by a Magistrate in the presence of the accused and his counsel, if any, and the representatives of the prosecution. *Bombay High Court in *Tagdu Govindset Wani v. Pttnja Vectu Want nd ethers*, AIR 1937 Bom. .* also owns this view. In this case it has been observed 'trial' has always been understood to mean the proceeding which commences when the case is called on with the Magistrate on the Bench, the accused in the dock and the representatives of the prosecution and defence, if the accused is defended, present in the Court for the hearing of the case." 19. It may be observed that the truth in a case cannot be found till the whole trial is concluded, i. e. the evidence of the prosecution and the defence has been recorded. So it would be said that a case is being tried throughout till the Magistrate or the Judge takes all proceedings necessary to find out the truth. When the accused is brought before the Court and the Court takes cognizance of the case against him, records his statement under section 242 Cr. PC (summons case), charge is framed (warrant case), witnesses are examined on behalf of the prosecution or the defence, at every stage, it shall be said that the case is being tried.

20. In the instant case, however, we are only concerned with the point as to whether recording the appellants' (accused) statements under section 242 Cr. PC would constitute initiation of trial; and obviously for the above stated reasons it would be construed as such.

On the point in *Mtunsif Khan and others v. The State* (PLD 1960 Azad J & K 45) it has been observed—"Trial is to find out by due examination the truth of the point in issue or question between the parties, whereupon judgment may be given.

It means the proceedings which commence when the case is called on with the Magistrate on the Bench and the accused on the dock, and the representatives for the prosecution and the accused are present in the Court for the hearing of the case. In a case triable exclusively in a Court of Sessions, the trial begins only after the charge is framed. So also, in a warrant case, the trial commences when the accused is called upon to plead to a charge. In a summons case, however, as it is not necessary to frame a formal charge, the trial may be said to commence when the accused is brought or appears before the Magistrate." 21. We respectfully concur with the law laid down in the above appellants under section 242 Cr. PC are recorded, the trial starts and continues till the final stage. It is however, imperative that the person holding the trial must be a person competent to try the offence. If the trial is initiated by an incompetent Court (as is done in the present case), no deep thought is required to say that it would be considered as no trial at all and would adversely affect the whole trial.

22. Coming to the instant case, on 27-10-1981 when the statements of the appellants under section 242 Cr. PC were recorded, the interim order shows that the Public Prosecutor on behalf of the prosecution and the accused with their counsel were present. Therefore, on the premises of the reasoning and law referred to above, it would be said that the trial had started at least from 27-10-1981, when the statements of the appellants were recorded under section 242 Cr. PC. All the case law on the point at least seem to own the view that recording of the statements under section 242 Cr. PC in summons cases will positively constitute trial under the Code of Criminal Procedure.

23. To meet the arguments, we may advantageously make a reference to Chapter XLV of the Code of Criminal Procedure. This Chapter deals generally with irregularities of proceedings. There are certain irregularities which do not vitiate the proceedings. They are stated in section

529 of the Code. No question of prejudice arises in those cases because section states categorically that they shall not vitiate the proceedings. Certain other irregularities are treated as vital and, therefore, the proceedings are void irrespective of prejudice. These are stated in section 530. The third class is dealt with in sections 531, 532, 533, 535, 536 and 537 of the Code of Criminal Procedure.

24. From the above what we seek to administer is that the Code has carefully classified certain kinds of errors and expressly indicates how they are to be dealt with. In every such case the Court is bound to give effect to the express commands of the Legislature and there is no scope of further speculation. Thus the only class of cases in which the Courts are free to reach a decision is that in which no express provision is made.

25. The instant case wants us to determine the effect of examination of the appellants under section 242 Cr. PC by the Sessions Judge alone who was not a Court at all to proceed with the trial.

26. We find that this situation is expressly covered under section 350 (p) of the Code of Criminal Procedure. It rests :— "If any Magistrate, not being empowered by law in this behalf, does any of the following things, namely (a) (b) (c)

(d)

if) (g) (A) O')

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(o) (p) tries an offender; (r) his proceedings shall be void." 27. It is, thus, manifest that if any Magistrate (or Court) not being empowered by law in this behalf tries an offender, all proceedings under the provisions of section 530 (p) Cr. PC shall be void. The word 'trial' has received our attention earlier, the 'trial' at least starts at the statement of an accused is recorded under section 242 Cr. PC, though it may also include the whole bundle of actions taken by the Court from the moment of taking cognizance of the case until its disposal.

28. Even on the basis of common-sense there is no doubt that if a Magistrate not being specifically empowered by the Local Government tries an offender for an offence which he is not specially empowered, the trial is void. It may be noticed that there is a distinction between the proceedings which are improper and proceedings which are void. If a Magistrate or a Court tries an offender for an offence which is beyond his jurisdiction (as the instant case is), his proceedings shall be void because none can be allowed to usurp a legal function which otherwise he is not competent to undertake; but if a Magistrate competent to try an offence tries it in an improper manner; such proceedings may be saved, not being illegal.

29. So it narrows down to this : a thing is 'illegal' that is to say not lawful because the Code expressly makes it so. Others are struck down by the good sense of the Judges who, whatever expression they may use, do so because those things had occasioned prejudice and offend their sense of fairplay and justice. The instant case is not only covered under section 530 (p) Cr. PC but our judicial consciousness also advises us to hold that the entire trial, for the illegality committed in the beginning, stands vitiated. The question that had tossed our mind all the time is as to whether after such a long time we should order retrial. In this wavering state of mind at times we have thought it better to err on the safe side all the proceedings but as we are to administer justice in accordance with law, no alternative remained with us but to declare all the proceedings as void and remand the case for retrial.

30. The logical conclusion to which we arrive is that except where there is something so vital as to cut at the root of jurisdiction or so adherent to what one might term natural justice, the matter resolves itself to a question of prejudice. But some violations of the provisions of the Code are so obvious (as is the case before us) that they will speak for themselves e.g., trial by an incompetent person, a refusal to give the accused a hearing, a refusal to allow him to defend himself, a refusal to explain the nature of charge and so forth. These all go to the foundation of natural justice and would be struck down as illegal forthwith and one would not see or look for prejudice in such like cases because prejudice would be presumed in such cases. Such a trial is only a mockery of the trial.

31. Section 537 Cr. PC may advantageously be reproduced to see as to whether the illegality can be cured. It reads "Subject to the provisions hereinbefore contained, no finding, sentence or order passed by a Court of competent jurisdiction shall be reversed or altered under Chapter XXVII or on appeal or revision on account:— (a) of any error, omission or irregularity in the complaint, report by police officer under section 173, summons, warrant, charge, proclamation, order, judgment or other proceedings before or during trial or in any inquiry or other proceedings under this Code, or,

(h) of any error, commission or irregularity in the mode of trial, including any misjoinder of charges, unless such error, omission or irregularity has in fact occasioned a failure of justice." 32. The close reading of the section would show that it is subordinate to the provisions contained in the earlier of the Code and it applies to mere error of procedure arising out of mere inadvertence and not to substantive error of law or to case of disregard or disobedience of the mandatory provisions of the Code of Criminal Procedure. A defect in the jurisdiction of the Court, as the case is before us, can never be cured under section 537 Cr. PC. *Gokulchand Dwarnadas v. The King* AIR 1948 PC 82) owns this view.

33. Let us look at the matter still from another angle and see as to whether the omission to record the statements of the accused under section 142 Cr. PC even by the competent Court would invalidate the proceedings. The examination of this point is necessary in view of submission made by Basharat Ahmed Shaikh that the present case may be considered to be a case of non-examination of the appellants under section 242 Cr.

which would not affect the trial accordingly.

34. It may be stated here that for a considerable time in the Indian legal history, following the report of the Privy Council in *Subhrmania Aiyar's case* which was followed by the Calcutta High Court in *Gopal Krishna Bhat and others v. Mali Lai Singh* AIR 1927 Cal. 196) it was found that violation even by a competent Court to comply with the provisions of section 242 Cr. P would vitiate the whole trial. However, later on this view was overruled by the majority on the basis of AIR 1977 PC 67, and it was held that error or omission in the statement under section 242 Cr. P. recorded by a competent forum, is curable by invoking the aid of section 537 of the Code of Criminal Procedure.

35. We have gone through the report of the Privy Council AIR 1947 PC 67) and find that it has decided the matter in a distinguishable situation. In the case before the Judicial Committee the question involved was whether the denial of the right to an accused person by proviso to section 162 Cr. PC amounted to an irregularity which vitiated the entire trial. The Judicial Committee held that failure to give the accused the benefit of proviso to section 162 of the Code was a serious matter. In the particular circumstances of that case the error was curable by section 537 Cr. PC inasmuch as the accused had not been prejudiced. The report does not deal directly with the

provisions of sections 242 or 342 of the Code of Criminal Procedure. It was not observed in the report that failure to comply with section 242 of the Code was curable under section 537 of the Code : if it could be shown that it did not cause prejudice to the accused nor there did anywhere the learned Judges say that the failure to observe the provisions of section 242 Cr. PC is curable under section 537 Cr. PC if the error cannot be said to have caused any sort of prejudice to the accused. This case having distinguishable features has no application to the facts of the present case and is of no avail to the respondent. So far as Privy Council case *V.M Abdul Rahman v. King-Empror* (AIR 192 / PC 44) is concerned, in that case in content to section 360 Cr. PC it was observed 'A mere omission or irregularity to comply with S. 360 un-accompanied by any probable suggestion of any failure of justice having been thereby occasioned, is not enough to warrant the quashing of a conviction.' It is, thus, obvious that this case deals with the omission to comply with section 360 and facts of distinguishable nature has small bearing on the controversy involved in the present case. Besides, we doubt the correctness of the view adopted in this case.

In *Dost Muhammad Qutab Din v. Municipal Committee, Haripur Hazara* (AIR 1941 Pesh. 9). relying on AIR 1927 Nag. 127, and not approving the law laid down in AIR 1927 Cal. 190, it was observed "The primary object of the proceeding prescribed by S. 242, Criminal PC, is to determine whether the accused pleads guilty to the charge or demands to be tried. . .

Whether the facts on which the case under S. 172, Punjab Municipal Act, was based were fully set out by the prosecution and the accused was specifically asked to explain the case : Held that in the circumstances failure to comply with the provisions of S. 242, Criminal PC, amounted merely to an irregularity which was cured under S. 537." 36. It would, thus, appear that irregularity or omission was committed by the Court competent to hear the matter unlike the issue before us. Besides, the omission, in our view, to examine the accused under section 242 Cr. PC shall vitiate the trial and with due respect, which we have for the learned Judge of the Peshawar High Court, we are unable to subscribe to his view.

37. Our view finds support in *Gopal Krishna Shaha v. Mali Lai Singh* AIR 1927 Cal. 196) which was owned in *Express Dairy Ltd. v.*

Corporation of Calcutta AIR 1950 Cal. 61). In that case it was observed : — 'Failure to observe the provisions of Ss. 242 and 342 would vitiate the entire trial, and the errors are not curable with the help of the provisions of S. 537.' Reliance in this case, as said earlier, was placed on *Gopal Krishna Saha v. Mali Lai Singh* AIR 1927 Cal. 196) and *Chaturani Kottaya and others v. Emperor* (AIR 1947 PC 67), relied upon by Mr. Basbarat Ahmad Shaikh, was distinguished.

33. In *Bidyadhar Tanga Samantra v. Daitari Rina* (AIR 1959 Orissa 11) and *Ahmad and others v. Bina Varalat* and another AIR 1957 Raj. 296) it was observed that omission to comply with the provisions of section 242 Cr. PC is not fatal to the proceedings unless it is vitiated by failure of justice. Besides, in *M. Ramamurthy v. State of Mysore* (AIR 1954 Mysore 164). *C. Qmgaippi v. State of Mysore* (AIR 1956 Mysore 63) and *State of Kerala v. Raman Nair* AIR 1962 Kerala 78) identical law is enunciated to the effect that omission to state the particulars of the offence under section 242 Cr. PC to the accused, if it causes prejudice to the accused, would vitiate the trial.

39. It would show that in both the *Calcutta* cases (AIR 1927 Cal. 196 and AIR 1950 Cal. 6.) the learned Judges, at least, found that omission to examine the accused under section 242 Cr. PC would render the proceedings as void and section 537 Cr PC cannot be attracted to say that it is an irregularity curable as it had not caused any miscarriage of justice or prejudice to the accused. It would, thus, appear that the *Calcutta* High Court owned the view contrary to the one

taken by the Privy Council and other superior Courts of India. The other cases cited by the High Court from Pakistan or Indian jurisdiction need not be discussed as they, more or less, contain identical statement of law which has received our attention in the earlier part of the judgment.

40. It is, thus, manifest that the judicial opinion in India on the effect of the omission to examine an accused under sections 242 Cr. PC is not so uniform. Certain superior Courts are of the view that violation of the provisions renders the proceedings as nullity, while the others held contrary view and are of the view that such an omission is curable in the absence of prejudice.

41. With utmost respect which we have for their Lordships of the superior Courts in India, we are unable to follow the view taken by the Courts that even the omission to record the statements under section 242 Cr. PC is curable if no prejudice can be shown to have been caused to the accused. An irregularity which occurs during examination of the accused under section 242 Cr. PC may be curable under section 537 Cr. PC if no prejudice is shown to have been caused to the accused, but failure to record the statements under section 242 Cr. PC at all, it is our considered belief, being violative of the mandatory provisions of section 242 Cr. PC, is considered as a nullity not curable under any provisions of the Code. Such a defect would render the whole proceedings as invalid; and prejudice to the accused in such like cases would be deemed as inherent.

42. It may be stated here that Legislature does not legislate any provision of law without a purpose. So any interpretation which would render the mandatory provisions of section 242 of the Code meaningless is not permissible. Therefore, if we hold that even violation of section 242 Cr. PC, i.e., omitting to record the statements of the accused is an irregularity curable, it may tantamount to say that obedience of provisions of section 242 Cr. PC, being discretionary, its violation would not affect the trial. This interpretation, to us, would amount to destroy the mandatory provisions of section 242 of the Code which the courts are not expected to do. Defective compliance with section 242 Cr. PC may not amount to any illegality but non-compliance of the provisions in our view, would positively be an illegality which would render the whole proceedings as nullity. If we accept the interpretation that even failure to record the statements of the accused under section 242 Cr. PC is an irregularity then the legislation of section 242 Cr. PC, which reads "When the accused appears or is brought before the Magistrate, a formal charge shall be framed relating to the offence of which he is accused and he shall be asked whether he admits that he has committed the offence with which he is charged," would be meaningless and the interpretation would destroy the very wisdom of the Legislature which, in our view, is not permissible. Non-compliance of a statutory provision of the nature under consideration is, in fact, violation of mandatory type of law and such a violation renders the proceedings as non-existent. It may, in a way, amount to legislation which is beyond our province. The Courts are not expected to interpret the law in a way which may in essence be deemed a legislation in derogation of statutory provisions.

43. We may state here that it is not possible to lay down any general rule for determining whether a provision is imperative or directory. "No universal rule," said Lord Campbell LC, 'can be laid down for the construction of statutes, as to whether mandatory enactments shall be considered directory only or obligatory with an implied nullification for disobedience. It is the duty of Courts - of Justice to try to get at the real intention of the Legislature by carefully attending to the whole scope of the statute to be construed.' Lord Penzance said. "I believe, as far as any rule is concerned, you cannot safely go further than that in each case you must look to the subject matter; consider the importance of the provision that has been disregarded, and the relation of that provision to the general object intended to be secured by the Act; and upon a review of the case in that aspect decide whether the matter is what is called imperative or only directory." 44. On the basis of the above statement of law and while attending the whole scope of

the Code of Criminal Procedure, we are of the considered view that the intention of the Legislature was that an accused must be examined under section 242 Cr. PC; failure whereof would render all the proceedings as nullity. In the absence of a statement under section 242 Cr. PC the whole object of the Legislature would be defeated which cannot be validated under any provisions of the Code.

45. The above enunciation of law would meet the argument advanced by Mr. Basharat Ahmad Shaikh that in the circumstances of the case, non-examination of the appellants under section 242 Cr. PC would not render the proceedings invalid.

46. Let us now have analytical survey of the solitary case law from the Pakistan jurisdiction, cited by Mr. Basharat Ahmad Shaikh, reported as *Iqbal Hussain v The State* (PLD 1969 Lah. 217). In this case a person, Iqbal Hussain by name, was convicted by the Additional District Magistrate Bahawalnagar, under section 409 Pakistan Penal Code, in his capacity as Special Judge. In appeal before the Lahore High Court, amongst others, the conviction was challenged on the ground that the appellant was not examined under section 242 Cr. PC and the whole proceedings stand vitiated because more than one offence had been lumped together and the appellant had no opportunity to know as to what case he had to meet. The mistake was committed by a Court competent to deal with the matter unlike the case before us. This case, thus, has no application to the facts of the present case and is distinguishable.

47. The conclusion comes to this when the contravention is substantial (as in the present case) retrial becomes necessary despite hardship to the prosecution or accused. But when the contravention is not substantial, i. e., there is a defect in recording the statements, it is an irregularity curable and would not vitiate the trial.

48. We would like to point out that the provisions of the Code of Criminal Procedure are meant to be obeyed and the Courts are not expected to ignore its provisions in the hope that they might find shelter under sections 535 and 537 of the Code. To illustrate, if a person is tried by a competent Court and if he is told and made to understand clearly the nature of the defence for which he is being tried and the case is explained to him fully and fairly and he has been afforded a full and fair opportunity of defending himself, mere mistake, error or omission in the statement under section 241 of the Code may not vitiate the trial unless the accused can show substantial prejudice.

49. It may be observed that statements under section 242 Cr. PC form the foundation of a trial in summons cases and is an important step to proceed with the trial. If this step is illegal, naturally whole structure built on this step must fall down as being built on an illegal foundation.

50. The above survey on legal as well as factual aspects, provides complete answer to the arguments advanced by the learned counsel for the parties barring the objection raised by Mr. Basharat Ahmad Shaikh that the appellants are estopped to seek exception to the statements under section 242 Cr. P ~ recorded by the Sessions Judge alone, as they slept over the matter through out the trial. Now we propose to dispose of this objection. As said earlier -the learned Sessions Judge had no jurisdiction to record the statements of the appellants under section 242 Cr. PC, the cardinal principle of law is that the consent cannot give jurisdiction and, therefore, any statutory objection, as is raised in the present case, which goes to the jurisdiction does not admit of waiver.

51. In *Essex Country Council v, Essex Incorporated Church Union* (1963) A.C. 81, the House of Lords held that since the jurisdiction of the Lands Tribunal is dependent upon statute, it cannot be extended, even by the consent of the parties, 52. Similarly, in *Re. Hooker's* (1955) Ch. 55],

Danckwerts J. (at page '8) held that "an ordinary person has not the power, which the legislature has, of course, to impose upon a Judge of the Chancery Division a jurisdiction which is not given him by the procedure of the Courts or by any statute." 53. Likewise estoppel cannot operate to prevent or hinder the performance of statutory duty. On the point in *Hea Bakrup cy Notice*, [(1924) 2 Ch. 76 the main question was whether a party could be estopped, by a letter of assent acted upon by the recipient, from contending that a certain agreement was void for want of registration under the Deeds of Arrangement Act, 1914. Atkin LJ said (at p. 97) "Whatever the principle may be (referring to a contention regarding approbation and reprobation), it appears to me that it does not apply to this case, for it seems to me well established that it is impossible in law for a person to allege any kind of principle which precludes him from alleging the invalidity of that which the statute has, on grounds of general public policy, enacted shall be invalid." 54. It is in fact a settled law that there can be no estoppel on the point of law. This view also prevailed in *Kzsarbai and another v. Jamaaar and others* (AIR 1925 Nag. 25), *Moot Chand Mcti Lai v. Ram Kishan and others* (AIR 1933 All. 249), *Kamwddin Yusuf Ali Bohra and another v. Municipal Committee, Khandwe* (AIR 1939 Nag. 195) and *Roghava Rajagopal Chari v. State of Assam and another* (AIR 1965 Assam 109).

55. The above discussion disposes of the objection raised by Mr. Basharat Ahmed Shaikh with regard to the waiver or estoppel alleged to be created by the appellants by their conduct.

56. Ch. Muhammad Taj, the learned counsel for the appellants during the course of arguments also prayed that in the event the case is, remanded for retrial, Abrar Hussain Shah, accused, who is in jail, may be granted bail because he, due to the protracted trial, would suffer again for no fault on his part. We think, it would be desirable that the matter may, in the first instance, be taken up before the trial Court.

52. On the premises of the reasoning advanced above we accept this appeal, set aside the order of the learned Chief Justice of the Shariat Court dated 23-7-1966 and quash the whole trial from the stage the statements of the appellants under section 242 Cr. P.C. were recorded by the Sessions Judge and order retrial by the District Criminal Court from the initial stage of recording the statements of the appellants under section 242 Cr. P.C. We, however, would desire early disposal of the case.

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